Contract

Contract No: GEMC-511687771120418
Generated Date:16-Jun-2020
Bid/RA/PR No:GEM/2020/B/533363

Organisation Details

Type:	State PSU
Ministry:	-
Department:	Information Technology and Communications Department Rajasthan
Organisation Name:	RajCOMP Info Services Limited
Office Zone:	RISL Jaipur

Buyer Details

Name:	Ramesh Chand Sharma
Designation:	Additional Director
Contact No.:	0141-2820456-21139
Email ID:	rcsharma@rajasthan.gov.in
GSTIN:	-
Address:	First Floor, Yojna Bhawan, Tilak Marg, C-Scheme, Jaipur, JAIPUR, RAJASTHAN-302005, India

Financial Approval Detail

IFD Concurrence : No
Designation of Administrative Approval : MD, RISL
Designation of Financial Approval : MD, RISL

Consignee Details

S.No	Consignee Name & Address	Service Description
1	Ramesh Chand Sharma Landline-0141-2820456-21139 rcsharma@rajasthan.gov.in First Floor, Yojna Bhawan, Tilak Marg, C-Scheme, Jaipur, JAIPUR, RAJASTHAN-302005, India	IT Professional Outsourcing Service IT Professional Outsourcing Service

Service Provider Details

Company Name:	DEV INFORMATION TECHNOLOGY LIMITED
Contact No.:	09638822110
Email ID:	bhavin.patel@devitpl.com
Address:	14,AARYANS CORPORATE PARK,NR.SHILAJ CROSSING,THALTEJ, AHMEDABAD, GUJARAT-380059, -
MSME verified:	Yes
MSE Social Category:	General
MSE Gender:	Male
GSTIN:	24AAACD5427B1ZA

Service Details

Contract Start Date : 22-Jun-2020 **Contract End Date :** 21-Jun-2021

Service	Quantity (Number of Resources)	Unit Price Monthly Cost to Buyer (Inclusive of all charges in INR)	Total Amount (Formula) ((Monthly Cost to Buyer (Inclusive of all charges in INR)*Number of Resources)*Contract Period/30)
IT Professional Outsourcing Service **Billing Cycle :** 30 day **Category Name :** IT Professional Outsourcing Service **Role :** Senior Software Developer **Zipcode :** NA **Broad Scope :** Operations and Support **District :** NA **Experience :** 5 **Qualification Stream :** MCA, B.Tech(CSE/IT), B.E. (IT/CSE) **Minimum Qualification :** Graduate, Post Graduate **Certifications :** Not Required **Buyer Parameter & Add-ons :**	1	114000.000	1,368,000

Service	Quantity (Number of	Unit Price Monthly Cost to Buyer (Inclusive	Total Amount (Formula) ((Monthly Cost to Buyer (Inclusive of all charges in

	Resources)	of all charges in INR)	INR)*Number of Resources)*Contract Period/30)
IT Professional Outsourcing Service **Billing Cycle :** 30 day **Category Name :** IT Professional Outsourcing Service **Role :** Helpdesk Services **Zipcode :** NA **Broad Scope :** Operations and Support **District :** NA **Experience :** 1 **Qualification Stream :** Graduate in Any Discipline **Minimum Qualification :** Graduate **Certifications :** Not Required **Buyer Parameter & Add-ons :**	1	33500.000	402,000
		Total Amount Including All Duties and Taxes in INR	1,770,000

SLA Details - IT Professional Outsourcing Service

IT PROFESSIONAL OUTSOURCING SERVICES

PREAMBLE : All IT Professional Outsourcing Service contracts placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Goods and Services;
2. Service Specific STC of IT Professional Outsourcing Service - as defined in Service Catalogue which includes SLA for the Service or Service for a particular produc
3. BID / Reverse Auction specific ATC

1. Operation of The above terms and conditions are in reverse order of precedence i.e. ATC supplement Service Specific STC and GTC, however Service Specific ST supersede over the GTC.
2. The above set of conditions along with Scope of supply including price as enumerated in the Contract Document shall be construed to be part of the contract.
3. This document represents a comprehensive Terms and Conditions governing the contract between the Buyer and Service Provider. The purpose of this document scope of work, Stakeholder's obligation and terms and conditions of all services covered as mutually understood by the stakeholder

Agreement Overview :This Agreement represents a Service Level Agreement ("SLA" or "Agreement") between the Buyer and IT Professional Outsourcing Service Provider. agreement is to facilitate implementation of IT Professional Outsourcing Services at the Buyer's premises. The Service Provider would provide the required equipment (if any the mentioned shifts as per the requirements of the buyer. This Agreement outlines the scope of work, Stakeholder's obligation and Terms and Conditions of all services cov mutually understood by the stakeholders.

Stakeholders

The main stakeholders associated with this SLA are:

1) Service Provider(s)/Service Provider

2) Buyer

3) Paying Authority

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses payment terms and penalties in case of non- defined terms and conditions. It is assumed that all stakeholders would have read and understood the same before signing the SLA.

Objective And Goals

The objective of this Agreement is to ensure that the proper elements and commitments are in place to provide consistent delivery of service to buyer by service provider. Th Agreement are to:

- Provide clear reference to service ownership, accountability, roles and/or responsibilities
- Present a clear, concise and measurable description of service provision to the customer
- Establish Terms and Conditions for all the involved stakeholders
- To ensure that all the parties understand the consequences in case of termination of services due to any of the stated reasons

Service Scope

Introduction

The scope of "IT Professional Outsourcing Services" is to provide specified number of IT professional manpower resources with requisite and prescribed qualifications and e function and perform as per agreed terms and conditions.

Based on a performance based approach for engaging the Service Provider to deploy Professional resources, on a man month basis,

Buyer shall provide all details and information needed on line and use appropriate filters enabled on line for this service.

An indicative list of activities that resources of Service Providers will be required to undertake are as follows:

a.Design and Development of application S/W

1. Rollout Management

c.Database Management.

d.Technical or Business Documentation.

e.Test case preparation and testing of the application software.

f.Training of users

g Carry out maintenance, feature up-gradation and support of application software post completion of project.

h.Bug fixing and implementation support to end users.

i.Project/Program Management

1. Architecture of the solution

(a) The performance and discipline of the resources provided by the bidder should be ensured by the Service Provider.

(b) Regular progress reporting and review of the same with the concerned Project coordinator will be an integral part of the responsibility of the Service Provider.

(c)Timely production of quality output will be an overarching responsibility of the Service Provider.

(d)The Project plan including scope of work, job requirements, time lines and resource requirements shall be finalised by the concerned Buyer Department. These resources as per the requirements of the project.

Broad Scope :

Broad scope of the Service is as follows:

Capacity buildingaimed at enhancing overall output and efficiency of the Organisation and its resources, would include activities like design and customization of training m conduct of Training, certifying Master trainers, bundle a Product(s) offer with onsite training /skilling support, Core Sectoral Skilling and its upgradation.

Project Managementwould cover all or any activity including initiating, planning, executing, controlling, and closing the work of the Project (its team) to achieve specific goa success criteria at the specified time. Setting up of a PMU, it operations (including Sourcing) and Management to deliver on agreed outcomes and performance will be centr

Programme Managementwhere multiple projects would be involved would focus on supporting the Owner (Buyer) in Supervision , Monitoring and Review of Project(s) imp

Consultancy/Advisoryprovided for conceptualizing, designing including taking up Proof Of Concept (PoC) exercise across products and sectors. Such advisory would indu implementation analysis and assessment of Projects, Draft documents like Vision, Strategy, Approach, DPRs etc.

Project Implementation refers actual implementation including assaying SI role in IT leveraged Projects will be covered under this track. Typically would involve setting up team and its management to deliver on agreed outcomes and performance.

Operations and Support refers to services that entities provide to users of technology products or services. In general, Operations and Support provide help regarding spe product or service, rather than providing training, provision or customization of product, or other support services. Operations and Support may be delivered over by phone, software on a website, or other tool where users can log an incident.

Sr. No	Manpower Category
1.	Database Administration Support
2.	Software Developer
3.	Sr. Software Developer/Trainer
4.	Team Lead
5.	Program Manager
6.	Project Manager
7.	Solution Architect

8.	Sr.Solution Architect
9.	UI Designer
10.	Developers
11.	Quality Expert
12.	Mobile Application developers
13.	Database Admin
14.	Security Expert
15.	Systems Admin
16.	Tester
17.	Documentation Expert
18.	Business Analyst
19.	Sr. Business Analyst
20.	Training and Change Management Expert
21.	Helpdesk Services
22.	Rollout Project Manager
23.	Rollout Senior Manager
24.	Rollout Manager
25.	Rollout Assistant
26.	Sr. Project Manager
27.	Project Manager
28.	Certified Ethical Hacker
29.	Cloud Solution Specialist
30.	Technology Consultant
31.	Sr.Technology Consultant
32.	Server Administrator
33.	Sr.Server Administrator

34.	Onsite Support for Data Center
35.	Infrastructure Consultant
36.	Team Lead /Solution Architect/Security Expert
37.	Team Lead Server Admin/DBA
38.	Sr. Technical Support Engineer
39.	Sr. Testing Engineer
40.	Training Specialist
41.	Document Writer
42.	Sr. Programmer
43.	Programmers
44.	Technical Support Engineer
45.	Testing Engineer
46.	Office Consultant
47.	Technical Support (System Software)
48.	Technical Support (Application Support)
49.	Technical Support (Networking Support)
50.	Project Management Support
51.	Senior Image Processing Expert
52.	Image Processing Expert
53.	Digitization Supervisor
54.	Digitization Operator
55.	Chief Project Manager
56.	Subject Matter Expert

Buyer's Obligations

1. Except as expressly otherwise provided, the Buyer shall, at its own expense, provide timely all the required equipment and facilities at the location(s) where the ma to be provided required to enable Service Provider's employees to perform and deliver as per agreed Terms and Conditions .
2. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of the Service Provider 's employees or agents in connection v soon as possible after the Buyer becomes aware of them.
3. The Buyer shall not be under any obligation for providing empanelment to any of the personnel of the Service Provider after the expiry of the contract. The Buyer d any employee employer's relationship with any of the workers of the Service Provider.

Service Provider's Obligations

1. A Service Provider would be required to provide sufficient and qualified manpower for further selection/replacement, capable of supporting the functioning of the pr
manner agreed with the Buyer. The services shall be rendered on a monthly, quarterly and yearly basis, as per the requirements of the Buyer.
2. The Service Provider shall provide Manpower Services at Buyer's premises as per Schedule of Work / Requirements which may be amended from time to time by t
Contractual period and it shall always form part and parcel of the Contract. The Service Provider shall abide by such assignments as provided by the Buyer from tir
3. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this r
4. The Service Provider shall exercise adequate supervision to reasonably ensure proper performance of Manpower Services in accordance with Schedule of Require
5. The Service Provider shall issue identity cards / identification documents to all its employees who will be instructed by the Service Provider to display the same.
6. The personnel of the Service Provider shall not be the employees of the Buyer and they shall not claim any salary or allowances, compensation, damages or anyth
their employment/duty under this Contract. The Service Provider shall make them known about this position in writing before deployment under this agreement.
7. All necessary reports and other information shall be supplied immediately as required and regular meetings will be held with the Buyer.
8. It is the responsibility of the Service Provider to provide manpower for the above listed work. The manpower has to be segregated, based on their years of experier

1. The responsibility of effective and efficient delivery would rest with the Service Provider. Thus, the education qualifications and experience of the manpower deploy
the subjugation of the Service Provider, subject to them meeting the minimum qualifying criteria.
2. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and
said manpower should be certified by the Service Provider.

- The police verification, character and antecedent's verification of the employees is the whole and sole responsibility of the Service Provider. The same may be verif
the time of joining of the employees, if he/she so desires.

1. The Service Provider shall ensure the following in respect of his employees-
2. The working hours and days of the outsourced employees will be as per the existing applicable rules of the respective Central/State Government organisations. Ho
work on holidays, if necessary and required based on demand of work.
3. In an event of deployed personnel availing leave, and if required by buyer suitable substitute(s) shall be provided by service provider as per mutual understanding v

- Consequent to poor performance of deployed manpower, service provider shall immediately replace the deployed manpower thereby maintaining service levels an

1. Working shifts (includes day and night shift) if any, and daily working hours shall be mutually agreed upon between buyer and seller prior to deployment of manpow
2. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the E
The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image o
office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
3. The persons deployed shall, during the course of their work be privy to certain qualified documents and information which they are not supposed to divulge to third
this, they shall be required to take oath of confidentiality and breach of this condition shall make the Service Provider as well as the person deployed liable for pena
applicable laws besides, action for breach of contract.

Special Terms and Conditions of The Service

1. The Service Provider would be required to provide sufficient and qualified manpower, capable of supporting the functioning of the project/department in a manner d
2. The Service Provider should have a legal status, whether it will be a registered Proprietorship Firm/Partnership Firm/Company under Companies Act having legal e
statutory licenses/registration for carrying out such activity as well has had registration for income tax.
3. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the en
contract; failing so shall attract the appropriate penalties. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
4. In case of services hired on annual basis and 5 working days, the employees will be entitled to 08 days of casual leaves per year on pro-rata basis and in case of 6
employees will be entitled to 15 days casual leave per year on pro-rata basis. Beyond specified leaves as applicable, leave will be treated as leave without pay (LW
necessary deduction will be made by the buyer in the billed amount if no replacement is provided.
5. No medical facilities or reimbursement or any sort of medical claims thereof in respect of employees provided by the Service Provider will be entertained by the Buy
6. The Buyer or its representative shall have the right to inspect and/or to test the services/Solution/Technology to check their conformity to the contract specifications
the Buyer.
7. The Buyer will in no way be responsible for the violation of any rules and/or infringement of any other laws from the time being in force, either by the employee or by
Provider. The employees as well as the Service Provider shall comply with the relevant rules and regulations applicable at present and as may be enforced from tim
the Buyer's department would not be liable or responsible in any manner. The onus of compliance to all the applicable laws/acts/rules shall only rest with the Servic
8. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.
9. The Buyer shall have the right, within reason, to have any personnel removed who is considered to be undesirable with proper reasoning or otherwise and similarly
Provider reserves the right to remove any personnel with prior intimation to the Buyer, emergencies, exempted.
10. The Service Provider shall not be allowed to transfer, assign, pledge or subcontract its rights and liabilities under this Agreement to any other agency or organisatio
be called without the prior written consent of the Authority.
11. The Service Provider shall nominate a coordinator who shall be responsible for regular interaction with the Buyer Department so that optimal services of the person
availed without any disruption.
12. For all intents and purposes, the Service Provider shall be the "Employer" within the meaning of different Rules & Acts in respect of manpower so deployed. The pe
the Service Provider shall not have any claim whatsoever like employer and employee relationship against the Buyer Department.
13. The Buyer Department shall not be responsible for any financial loss or any injury to any person deployed by the Service Provider in the course of their performing
or for payment towards any compensation.
14. The persons deployed by the Service Provider shall not claim nor shall be entitled to pay, perks and other facilities admissible to regular / confirmed employees dur
after expiry of the Agreement.

15 **Debarment**: All Government entities should follow the following debarment rules, prescribed in GFR, 2017.

(i) A bidder shall be debarred if he has been convicted of an offence-

1. under the Prevention of Corruption Act, 1988; or
2. the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of procurement contract.

(ii) A bidder debarred under sub-section (i) or any successor of the bidder shall not be eligible to participate in a procurement process of any procuring entity for a period not years commencing from the date of debarment.

(iii) A procuring entity may debar a bidder or any of its successors, from participating in any procurement process undertaken by it, for a period not exceeding two years, if it

bidder has breached the code of integrity. The Ministry/Department will maintain such list which will

also be displayed on their website.

(iv) The bidder shall not be debarred unless such bidder has been given a reasonable opportunity to

represent against such debarment."

1. **Quoting of Price on the Portal** : Changes in Government taxes should not be imposed on the vendor by making payment adjustments. The net revenue for the C remain the same as was factored in during the financial estimation of the project"

1. **Fall Clause** :The BIDDER undertakes that under similar buying conditions, it has not supplied/is not supplying similar product/systems or subsystems at a price low in the present bid in respect of any other Ministry/Department of the Government of India or PSU and if it is found at any stage that similar product/systems or subs supplied by the BIDDER to any other Ministry/Department of the Government of India or a PSU at a lower price, then that very price, with due allowance for elapse applicable to the present case and the difference in the cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded."

1. **EMD Forfeiture :**The EMD may be forfeited:

- If a bidder withdraws its bid during the period of bid validity.

- In case of a successful bidder, if the bidder fails to sign the contract in accordance with this RFP.

- In case of seller indulging in corrupt of false practices

19.Force Majeure : Force Majeure is herein defined as any cause, which is beyond the control of the selected Bidder or Purchaser as the case may be which they could no reasonable amount of diligence could not have foreseen and which substantially affect the performance of the contract, such as:

1. Natural phenomenon, including but not limited to floods, droughts, earthquakes and epidemics
2. Acts of any government, including but not limited to war, declared or undeclared priorities, quarantines and embargos
3. Terrorist attack, public unrest in work area provided either party shall within 10 days from occurrence of such a cause, notify the other in writing of such causes. The Purchaser shall not be liable for delay in performing his/her obligations resulting from any force majeure cause as referred to and/or defined above. Any delay beyo lead to termination of contract by parties and all obligations expressed quantitatively shall be calculated as on date of termination. Notwithstanding this, provisions r confidentiality survive termination of the contract."

1. **Arbitration : Buyer and the Service Providing Agency will make every effort to resolve amicably, by direct negotiation, any disagreement or dispute aris under or in connection with the contract placed through GeM .**If the parties cannot resolve the Dispute then any such dispute or difference whatsoever arising to this Contract out of or relating to the construction, meaning, scope, operation or effect of this Contract or the validity of the breach thereof shall be referred to a su appointed by mutual consent of both the parties herein. If the parties cannot agree on the appointment of the arbitrator within a period of one month from the notific the other of existence of such dispute, then the Arbitrator shall be appointed by the High Court under which Jurisdiction office of the buyer falls. The provisions of th Conciliation Act, 1996 will be applicable and the award made there under shall be

final and binding upon the parties hereto, subject to legal remedies available under the law. Such differences shall be deemed to be a submission to arbitration under the Ind Conciliation Act, 1996, or of any modifications, Rules or re-enactments thereof. The Arbitration proceedings will be held at the jurisdiction specified above . Any legal dispute sole jurisdiction specified above .

The provisions of the Arbitration and Conciliation Act, 1996 will be applicable and the award made there under shall be final and binding upon the parties hereto, subject to l available under the law. Such differences shall be deemed to be a submission to arbitration under the Indian Arbitration and Conciliation Act, 1996, or of any modifications, F re-enactments thereof."

1. **Limitation of Liability:** (a) The liability of Consultant (whether in contract, tort, negligence, strict liability in tort, by statute or otherwise) for any claim in any manner Agreement, including the work, deliverables or Services covered by this Agreement, shall be the payment of direct damages only which shall in no event in the agg fees and expenses received under this work order. The liability cap given under this Clause shall not be applicable to the indemnification obligations set out in Clau

(b) In no event shall either party be liable for any consequential, incidental, indirect, special or punitive damage, loss or expenses (including but not limited to business interr lost profits, or lost savings) even if it has been advised of their possible existence.

(c) The allocations of liability in this clause represent the agreed and bargained-for understanding of the parties and compensation for the Services reflects such allocations. duty to mitigate the damages and any amounts payable under an indemnity that would otherwise be recoverable from the other Party pursuant to this Agreement by taking a commercially reasonable actions to reduce or limit the amount of such damages or amounts."

1. **Indemnification:** Consultant (the ""Indemnifying Party"") undertakes to indemnify (the ""Indemnified Party"") from and against all Losses on account of bodily injury to tangible personal property arising in favour of any person, corporation or other entity (including the Indemnified Party) attributable to the Indemnifying Party's neg default in performance or non-performance under this Agreement. If the Indemnified Party promptly notifies Indemnifying Party in writing of a third party claim again that any Service provided by the Indemnifying Party infringes a copyright, trade secret or Indian patents of any third party, Indemnifying Party will defend such claim will pay any costs or damages that may be finally awarded against Indemnified Party. Indemnifying Party will not indemnify the Indemnified Party, however, if the cl is caused by (a) Indemnified Party's misuse or modification of the Service; (b) Indemnified Party's failure to use corrections or enhancements made available by the

(c) Indemnified Party's use of the Service in combination with any product or information not owned or developed by Indemnifying Party; (d) Indemnified Party's dis
or use for the benefit of third parties of the Service; or (e) information, direction, specification or materials provided by Indemnified Party or any third party contracte

is or likely to be held to be infringing, Indemnifying Party shall at its expense and option either (i) procure the right for Indemnified Party to continue using it, (ii) repla noninfringing equivalent, (iii) modify it to make it noninfringing. The foregoing remedies constitute Indemnified Party's sole and exclusive remedies and Indemnifying liability with respect to infringement.

23.Forfeiture of Performance Bank Guarantee : Forfeiture of Security Deposit: Security amount in full or part may be forfeited in the following cases:

1. When the terms and conditions of contract is breached/infringed.
2. When contract is being terminated due to non-performance of the Successful Bidder.
3. Notice of reasonable time will be given in case of forfeiture of security deposit. The decision of

the Nodal Officer in this regard shall be final."

24.Termination for default :

1. a) Without limiting any other rights or remedies the Client may have against the Consultant / service providing agency arising out of or in connection with this Contra may terminate this Contract effective immediately by giving written notice to the SPA/Consultant if: the Consultant breaches a material provision of this Contract wh not capable of remedy; the Consultant breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do specified in any clause of the contract happens to the SPA/Consultant. Termination of this Contract does not affect any accrued rights or remedies of a party.

Confidentiality

The Service Provider shall not use Confidential Information, the name or the logo of Buyer Department except for the purposes of providing the Service as specified under th Service Provider may only disclose Confidential Information in the following circumstances with the prior written consent of Buyer Department to a member of the Service Pr aware of the confidentiality of the Confidential Information and is obliged to use it only for the performance of obligations under this contract.

1. The Service Provider shall do everything reasonably possible to preserve the confidentiality of the Confidential Information to the satisfaction of Buyer Department.
2. The Service Provider shall notify Buyer Department promptly if it is aware of any disclosure of the Confidential Information otherwise than as permitted by this Cont authority of Buyer Department.

Payments

1. The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank accoun payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by Buyer Departments.
2. The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
3. Any violation of contractual obligations by the Service Provider/employee shall attract penalties as mentioned against each obligation. The Service Provider confirm penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
4. TA/DA shall be payable directly by the Buyer on production of travel documents in original and approval of appropriate authority of the Buyer for undertaking such t project/assignment.
5. All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the sa Provider shall pay the GST and the price quoted is inclusive.
6. The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previ
7. In case the submission of monthly bills is delayed by the Service Provider beyond 15 days from the last day of the month in which the services have been provided towards payment of interest/penalty to the tax authorities would be borne by the respective Service Provider.
8. Escalation towards payment of salaries / wages of the employees shall not be accepted on any ground during the contract period.
9. The Breakup of the components to be provided to the Buyer Department. The Buyer Department will provide Minimum Wage as per the Notification applicable in th category of Resource they want to procure.

The following conditions shall specify breach of contract and buyer shall have right to immediately terminate the contract.

1. Cumulative penalties reach 10% of the contract value
2. Repeated breach of SLAs beyond 3 instances in the entire contractual period shall be treated as breach of contract. Breach of SLA is defined as performance lowe performance in this agreement.
3. In case of major default on the part of the Service Provider, the Buyer may provide a 24-hour written notice terminating the contract to the Service Provider.

Penalties

- Penalties for a specific month / period shall be capped at 10% of bill generated for that particular month / period.
- If any SLA is breached beyond 3 instances in any billing period then same shall be treated as a breach of contract and buyer will have full rights to terminate the co notice of 30 days

Penalties for Non-Compliance to Service Level Agreement

Penalties will be levied on the service provider for the violation of service level agreement of the contract as mentioned below:

#	**Service level agreement**	**Penalties for non-compliance**
1	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 Days, @1% per day of the value of monthly cost and Beyond 15 days can contract with cancellation charges @ 10% of the order value.
	If the employee is found responsible for any theft, loss of material/ articles	Immediate payment in actuals, equivalent to the value of the article theft/lost/damag

2	and damages	within 2 day/cancellation of contract as decided by the buyer depending on the grav
3	If the employee is found responsible for disobedience/ misconduct	Warning/counselling/Immediate replacement of resource within 2 days as decided b depending on the gravity of the act
4	If the employee is absent for more than 2 days without informing or taking prior approval.	Substitute within 2 days with equivalent resource failing which, @ 1% per day of the (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days contract with cancellation charges @ 10% of the order value
5	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace	Immediate replacement within 2 days/ cancellation of the contract with cancellation decided by the buyer depending on the gravity of the act.

Additional Required Data/Document(s) : Buyer

1. **Scope of Work :click here**

Additional Data/Document(s) : Seller

1. **Solution Proposal :click here**
2. **Certificate (Requested in ATC) :click here**

Terms and Conditions

1. General Terms and Conditions

1.1 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) as available on the GeM portal (unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

1.2 Terms of delivery: Free Delivery at Site including loading/unloading. In respect of items requiring installation and / or commissioning and other services in the scope of supply (as indicated in respective product category specification / STC / ATC), and the cost of the same is also included in the Contract price.

1.3 Delivery period: The Delivery Period/Time shall be essence of the Contract and delivery must be completed not later than such date(s). Any modification thereto shall be mutually agreed and incorporated in the Contract as per the provisions of the GTC.

1.4 Performance Security: If the Seller fails or neglects to observe or perform any of his obligations under the contract it shall be lawful for the Buyer to forfeit either in whole or in part, the Performance Security furnished by the Seller.

1.5 Taxes and Duties: Contract Prices are all inclusive i.e. including all taxes, duties, local levies / transportation / loading-unloading charges etc. Break up of GST shall be indicated by the Seller while raising invoice / bill on GeM. While submitting the bill / invoice Seller shall undertake that the Goods and Services Tax (GST) charged on this bill is not more than what is payable under the provision on the relevant Act or the Rules made there under and that the Goods on which GST has been charged have not been exempted under the GST Act or the Rules made there under and the charges on account of GST on these goods are correct under the provision of that Act or the rules made there under.

1.6 Octroi Duty and / or other local taxes: Contract Prices are all inclusive hence no reimbursement over and above the contract price(s) shall be allowed to seller towards payment of local taxes (such as levy of town duty, Octroi Duty, Terminal Tax and other levies of local bodies etc).

1.7 Limitation of Liability: The provisions of limitation of liability between Buyer and Seller as given in the GTC shall be applicable here.

1.8 Resolution of disputes: The provisions of DISPUTE RESOLUTION BETWEEN BUYER AND SELLER as given in the GTC shall be applicable here.

1.9 Liquidated Damages: If the Seller fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, @ 0.5% per week or part of the week of delayed period as pre-estimated damages not exceeding 10% of the contract value without any controversy/dispute of any sort whatsoever. In case, Service Level Agreement (SLA) is applicable the same shall be applicable for the Contract.

1.10 Financial Certificate:

1.10.1 The expenditure involved for this purpose has received the Sanction of the competent financial authority.

1.10.2 The funds are available under the proper head in the sanction budget allotment for the concern financial year.

1.10.3 I have been fully authorized by the department to sign the supply order or incur the liability of the Goods being ordered.

1.11 The bidder should submit a self declaration to the effect in bidder's official letter head that their agency have not been black listed by any Agency whatsoever till date.

2. Additional Terms and conditions

2.1 OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

Note: This is system generated file. No signature is required.